

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*

DOCKET NO. 24-16

Served: July 21, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER GRANTING REQUESTS TO WITHDRAW MOTIONS TO QUASH

I. Introduction

On June 10, 2026, I issued an Order Setting Status Conference and Date to Respond to Supplement to the Motion to Compel (“June 10 Order”) informing the parties that a status conference would be held to discuss several emails the parties had sent to me that were not part of the record, to address Complainant’s supplement to the motion to compel, and “to better understand the issues and whether the parties have jointly resolved any of them....” June 10 Order at 1. I postponed the status conference set for June 17, 2026, and stated by email to the parties that it would be rescheduled. Prior to rescheduling the conference, the parties filed a Joint Status Report (“JSR”) in which they intimated that there may be partial resolution of some of the issues, including modifications to the non-party subpoenas.

Rather than conduct the status conference without knowing what issues remain among the parties and whether the non-parties were satisfied with the modifications to the subpoenas, I issued an order on June 30, 2026, requesting information from the parties to this proceeding and from the two non-parties who had filed motions to quash the subpoenas issued to them by Respondent. Of the many issues outstanding between the parties, this order addresses only the motions to quash filed by two non-parties, Samsung SDS America, Inc. (“SDS America”) and Samsung SDS Asia Pacific Pte Ltd. (“SDSAP”). The remaining discovery motions pending before me will be addressed in separate orders.

II. Motions to Quash

On October 15, 2025, SDS America filed a motion to quash; on November 28, 2025, SDSAP similarly filed a motion to quash. At the time it received the subpoena from COSCO Shipping Lines Co., Ltd. (“COSCO”), SDSAP was a named Third-Party Respondent and had filed a motion to dismiss the third-party complaint. SDS America was not a named party at any time. SDSAP argues in its motion to quash that the subpoena was premature, and since it was a

party to the proceeding at the time the subpoena was issued, it was an inappropriate use of a subpoena as a discovery device. SDS America argued in its motion to quash that the subpoena was overbroad, vague, and burdensome.

On May 5, 2026, an order issued granting COSCO's motion to voluntarily dismiss the third-party complaint. On June 18, 2026, COSCO sent an email to counsel for SDS America and SDSAP, modifying the subpoenas based on the dismissal of the counterclaim and third-party complaint. Attachment 1 to JSR. On July 10, 2026, both SDSAP and SDS America filed motions requesting to withdraw their respective motions to quash and indicated that they intended to comply with the modified subpoenas, although "further refinement of the Subpoena may be required." SDS America Request to Withdraw its Motion to Quash at 2; SDSAP Request to Withdraw its Motion to Quash at 2. Both SDS America and SDSAP added that they conducted a conference call with COSCO on July 8, 2026, to discuss the scope of production "which hopefully will preclude the necessity for any further motion practice" and both entities have started gathering documents to comply with the modified subpoenas. *Id.* Neither SEA nor COSCO responded to SDS America's or SDSAP's requests to withdraw their motions to quash their respective subpoenas and COSCO specifically alerted the undersigned to its voluntary modifications of the subpoenas. Since no opposition to the withdrawal requests has been received and both subpoenaed entities have started gathering records to comply with the modified subpoenas, the requests to withdraw the motions to quash are granted without prejudice.

III. Order

Based on consideration of the record, it is hereby

ORDERED that Samsung SDS Asia Pacific Ltd.'s and Samsung SDS America, Inc.'s requests to withdraw their motions to quash are **GRANTED WITHOUT PREJUDICE**.



Linda S. Harris Crovella
Administrative Law Judge